

TENTATIVE RULING

Case: **Zenith Insurance Company v. Duffy et al.**
 Case No. CV2025-0320

Hearing Date: **April 23, 2026** **Department Fourteen** **9:00 a.m.**

Motion to strike defendants' answers:

Plaintiff Zenith Insurance Company's motion to strike defendants Jason Ryan Duffy and Judy Ann Reamer's (collectively, "defendants") answers for violation of court discovery orders is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (d), 2030.290, subd. (c).) The Court finds that terminating sanctions are premature as defendants have only violated one court order. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 ["a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective"]; Ernst Decl., ¶¶ 4-6.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.